

25NNCV06707 25NNCV06707

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Case Number: 25NNCV06707 Hearing Date: September 17, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Compel Further Responses to Special

Interrogatories and Requests for Admission; Request for Sanctions

Hearing Date: 09/17/26

CASE NO.: 25NNCV06707

CASE NAME: Tracy Thai, et. al. v. City of Temple, et. al.

Moving Party: Plaintiff Tracy Thai

Responding Party: Defendants City of Temple City

Notice: Sufficient

Rulings: GRANTED in part; DENIED in part.

NOTICE

The Court is not requesting oral argument on

this matter/motion. The Court is guided

by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to

appear is requested. Unless the Court

directs argument in the Tentative Ruling, no argument is requested and ANY

PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00

P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue

as to this matter/motion. The tentative

ruling will become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by

telephone at (818) 260-8422.

Parties must appear on all other matters

scheduled for this case.

BACKGROUND

This is a wrongful death case. On

February 13, 2025, Decedent Hung Chanh Thai was allegedly traveling westbound on Lower Azusa Road in dark and rainy weather when the roadway was suddenly narrowed by a bulb. (Compl., ¶ 26.) When Decedent struck the bulb, Decedent's

vehicle was immobilized on train tracks and hit by a train. (Id. at ¶

28.) Consequently, Decedent died. (Ibid.) Plaintiff Cindy Thai,

Decedent's daughter and successor-in-interest to the Estate of Decedent, brings

this action on behalf of Plaintiff Tracy Thai ("Thai"), Decedent's wife, and

Michael Thai, Decedent's son (collectively, "Plaintiffs"). (Id. at ¶ 1.)

Defendants City of Temple, City of Rosemead, County of Los Angeles, California

Department of Transportation, and Does 1 through 50 (collectively,

"Defendants") are alleged to have designed, constructed, built, maintained, and

controlled the roadway located at Lower Azusa Road. (Id. at ¶ 20.)

On January 23, 2026, Plaintiffs filed a Complaint alleging

(1) dangerous condition of public property and (2) negligence.

On July 21, 2026, Plaintiffs filed a motion to compel

further response to Requests for Admission (RFAs) (Res ID: 5957) and Special

Interrogatories (Res ID: 3149) served on Defendant City of Temple (Temple). On

August 28, 2026, Temple filed an opposition to each motion. On September 4,

2026, Plaintiffs filed replies.

LEGAL

STANDARD

"Unless notice of this motion is

given within 45 days of the service of the verified response, or any

supplemental verified response, or on or before any specific later date to

which the propounding party and the responding party have agreed in writing,"

the trial court lacks jurisdiction to order further responses to interrogatories and/or requests for production of documents. (Code Civ. Proc., §§ 2030.300(c), 2033.290(c); see *Vidal Sassoon v. Superior Court* (1983) 147 Cal.App.3d 681, 685 (45-day deadline to file motion to compel further is mandatory and jurisdictional).)

Compel

Further Special Interrogatories

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that... (1) [a]n answer to a particular interrogatory is evasive or incomplete; (2) [a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or...(3) [a]n objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300(a).)

“A motion under subdivision (a) shall: (1) be accompanied by a meet and confer declaration” and (2) contain a separate statement or a concise outline of the discovery request and each response in dispute. (Code Civ. Proc., § 2030.300(b).)

If a party fails to timely respond, objections are waived unless the court relieves the waiver upon a showing of mistake, inadvertence, or excusable neglect and a subsequently served compliant response. (Code Civ. Proc., § 2030.290.)

Compel

Further Requests for Admission

“On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that ... (1) an answer to a particular request is evasive or incomplete and/or (2) an objection to a particular request is without merit or too general. (Code Civ. Proc., § 2033.290(a).)

“A motion under subdivision (a) shall: (1) be accompanied by a meet and confer declaration” and (2) contain a separate statement or a concise outline of the discovery request and each response in dispute. (Code

Civ. Proc., § 2030.300(b).)

If a party fails to timely respond, objections are waived unless the court relieves the waiver upon a showing of mistake, inadvertence, or excusable neglect and a subsequently served compliant response. (Code Civ. Proc., § 2033.280.)

DISCUSSION

Timeliness

Here, Temple submitted verified responses to Plaintiffs' request for special interrogatories and requests for admission on March 20, 2026. (Farrugia Decl., ¶ 7.) Plaintiff represents that supplemental responses were served on June 26, 2026. The instant motions were filed on July 21, 2026, 25 days after the issuance of responses. Thus, the motions are timely and conform with the 45-day statutory deadline.

Separate Statement

California Rules of Court, rule 3.1345 requires a separate statement for motions to compel further responses. Plaintiffs filed separate statements in compliance with rule 3.1345(a) for each of the instant motions. Accordingly, this requirement is satisfied

Meet and Confer

A motion to compel further responses must be accompanied by a "meet and confer" declaration "showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a); § 2030.300, subd. (b)(2).)

Here, Plaintiffs' counsel declares that the parties engaged in meet and confer efforts on April 9, 2026, regarding deficiencies in responses, and subsequent meet and confer efforts were conducted via phone. (Farrugia Decl., ¶¶ 11, 13.) Plaintiffs' counsel declares that the parties were not able to reach a resolution. (Farrugia Decl., ¶ 16.)

The parties have met and conferred on several occasions, satisfying the meet and confer requirements.

Compel

Further Response to Interrogatories

Plaintiffs move the Court to compel Temple to provide further responses to special interrogatories #1-18, 20, 22-27, and 28-35. (Mot. Compel Interrog., p. 5.) Plaintiffs argue that Temple's responses are evasive because Temple indicates it is relying on expert testimony for all special interrogatories and cites the nearly 3,000 documents previously provided which don't have anything to do with these specific prompts. (Ibid.)

In opposition, Temple argues that they have met with Plaintiffs several times regarding these responses in good faith and supplemented the responses. (Mot. Compel Interrog., p. 2.) Temple contends that these responses reflect information reasonably available to it as a result of investigation. (Ibid.) Temple also argues that they have not waived the right to object because subsequent extensions to respond were given.

In reply, Plaintiffs stipulate that they have communicated with Temple via telephone and have agreed to waive the sanctions request but reiterate the argument that the responses are not code compliant. (Reply, p. 2.)

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) Here, the interrogatories were served on Plaintiff on December 19, 2025 (Farrugia Decl., ¶ 3.) However, responses were not provided until March 20, 2026. (Farrugia Decl., ¶ 7.) This is beyond the 30-day statutory deadline, however, the parties both state several extensions being given pursuant to Code of Civil Procedure section 2030.270. (Farrugia Decl., ¶¶ 5-6; Hannagan Decl., ¶ 5.) Further, "unless [the] agreement expressly states otherwise, it is effective to preserve to the responding party the right to respond to any request for admission to which the agreement applies in any manner" including objections. (Code Civ. Proc., § 2030.270(c).)

The Court has reviewed Temple's responses, and supplemental responses, to Plaintiffs' special interrogatories and has

concluded that Temple's responses are evasive and incomplete. Notwithstanding objections still being fair to assert, Temple responds to nearly every interrogatory by deferring to an unidentified expert who will be providing testimony at some point, or by incorporating by reference approximately 3000 pages of discovery without providing any specificity. (See Interrog. Separate Statement.) Temple does not attempt to offer substantive responses, and the court does not find special interrogatories #1-18, 20, 22-27, and 28-35 overly vague or ambiguous. Further, Temple seems to assert these blanket objections to nearly every single interrogatory.

Accordingly, the motion to compel further responses to special interrogatories is GRANTED.

Compel Further Request for Admission

Plaintiffs move the Court to compel Temple to produce further responses to RFAs #1, 4-28 arguing that Temple's responses are incomplete. (Mot. Compel RFA, p. 2.) Plaintiffs argue that Temple "cannot admit or deny" nearly every request, assert blanket objections, and have indicated reliance on an expert for nearly every response. (Ibid.)

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) Here, the interrogatories were served on Plaintiff on December 19, 2025 (Farrugia Decl., ¶ 3.) However, responses were not provided until March 20, 2026. (Farrugia Decl., ¶ 7.) This is beyond the 30-day statutory deadline, however, the parties both state several extensions being given pursuant to Code of Civil Procedure section 2033.260. (Farrugia Decl., ¶¶ 5-6; Hannagan Decl., ¶ 5.) Further, "unless [the] agreement expressly states otherwise, it is effective to preserve to the responding party the right to respond to any request for admission to which the agreement applies in any manner" including objections. (Code Civ. Proc., § 2033.260(c).)

In opposition, Temple argues, again, that they have met with Plaintiffs several times regarding these responses in good faith and supplemented the responses. (Opp., p. 2.) Temple also argues that they have not waived the right to object because subsequent extensions to respond were given. (Opp., p. 5.) Further, Temple argues that these responses reflect information reasonably available to it as a result of investigation, and the

requests seek answers to technical issues they are not aware of. (Opp., pp. 5-7.) Temple argues that just because Plaintiffs don't agree with their answers doesn't make them non-compliant. (Opp., p. 7.)

In reply, Plaintiffs stipulate that they have communicated with Temple via telephone and have agreed to waive the sanctions request but reiterate the argument that the responses are not code compliant. (Reply, p. 2.)

The Court has reviewed Temple's responses, and supplemental responses, to Plaintiffs' RFAs and has concluded that Temple's responses are evasive and incomplete. Notwithstanding objections still being fair to assert, Temple responds to nearly every RFA by saying they cannot confirm or deny and deferring to an unidentified expert who will be providing testimony at some point. (See Request for Admission Separate Statement.) The Court notes that Temple has subsequently admitted RFAs #4-5, and 7 as well as denied RFAs #11-13. However, as to RFAs #1, 6, 8-10, and 14-28, Temple does not attempt to offer substantive responses, and the court does not find the requests overly vague or broad as Temple's objections state.

Accordingly, the motion to compel further responses to RFAs is GRANTED as to RFAs #1, 6, 8-10, and 14-28 and DENIED as to RFAs #4-5, and 7.

CONCLUSION AND ORDER

Plaintiff Tracy Thai's Motion to Compel Further Response to Special Interrogatories is GRANTED.

Plaintiffs' Motion to Compel Further Response to Requests for Admission is DENIED as to #4-5, and 7 and GRANTED as to #1, 6, 8-10, and 14-28.

Plaintiffs' request for sanctions is DENIED pursuant to stipulation of the parties.

MOVING PARTY shall submit a proposed order consistent with this ruling within 10 days from the date of this hearing and provide notice.